

CYB 320 Module Two Activity Worksheet
Privacy and Communication Laws

This worksheet has two parts that you must complete. For **Part I**, complete the table by filling in the two blank columns for each law. For **Part II**, select either the *United States v. Simons* case study or the *Steve Jackson Games, Inc. v. United States Secret Service* case study from the Module Two Reading and Resources section, then respond to the questions in the table.

Part I: Laws

Law	Briefly describe the law (3–4 sentences)	Describe the law’s effect on digital investigations (3–4 sentences)
First Amendment	The First Amendment establishes a clear separation between government and religion by prohibiting the establishment of a state church or interference with religious exercise. It restricts the government from persecuting individuals based solely on their speech or personal expression. Additionally, the amendment creates the legal foundation for a Free Press and the right to peaceably assemble or protest. These protections ensure that the government cannot suppress dissenting opinions or private beliefs.	The First Amendment significantly impacts digital investigations by limiting the legal grounds for initiating a probe. The government is prohibited from using its investigative power to harass individuals or organizations simply because it disagrees with their speech or private expression. It also prevents investigators from pestering journalists for their sources or interfering with their reporting activities. These protections ensure that digital surveillance and evidence gathering are not used as tools for political or religious suppression.
Fourth Amendment	The Fourth Amendment keeps the government from freely searching someone or their property, papers, or effects. It establishes a requirement for the government to get approval from a judge backed by a sworn affidavit and based on probable cause. The warrant must also specify exactly where they want to search and what they intend to take.	The Fourth Amendment forces digital investigators to strictly follow the warrant process before searching personal devices or private cloud storage. It mandates that any digital evidence seized must be directly related to the specific locations and items described in a court-approved warrant. This prevents "fishing expeditions" where investigators might otherwise browse through unrelated personal files or communications. Because of this, any digital evidence obtained through an unreasonable search is usually inadmissible in court.

Law	Briefly describe the law (3–4 sentences)	Describe the law's effect on digital investigations (3–4 sentences)
Electronic Communications Privacy Act	The ECPA extends government restrictions on wire taps from telephone calls to include the interception of electronic data. It protects wire, oral, and electronic communications while those communications are being made, are in transit, or when they are stored on computers. The act establishes different levels of legal protection and requirements for the government to access content depending on whether the data is in transit or in electronic storage.	The ECPA significantly impacts digital investigations by creating strict legal barriers that prevent the government from being too nosy. These restrictions keep the government from intercepting wire, oral, and electronic communications while those communications are being made, are in transit, or when they are stored on computers. Because it protects communications in these various states, investigators must navigate a complex set of requirements to avoid violating privacy rights. This ensures that digital evidence is gathered through a regulated process rather than unrestricted surveillance.
Privacy Act of 1974	The Privacy Act of 1974 regulates how federal agencies collect, maintain, use, and disseminate records containing personal information about individuals. It requires agencies to give the public notice of their systems of records through the Federal Register. The law gives individuals the right to review their own records, request corrections to inaccuracies, and provides legal recourse if an agency violates these provisions.	The Privacy Act of 1974 basically stops federal agencies from creating secret digital dossiers or sharing your data like a trading card. This restricts digital investigations by preventing federal agencies from linking personal data across different databases without a specific, legally authorized reason. Because agencies must provide public notice of their record-keeping systems, investigators are barred from using undisclosed databases to build a digital profile on a suspect. This forces a higher level of transparency and documentation in how digital forensics teams handle and transfer personal records between departments.
USA Patriot Act	The USA Patriot Act expanded the authority of law enforcement to monitor electronic communications and physical records to combat terrorism. It lowered the legal bar for obtaining surveillance warrants and allowed for "sneak and peek" searches where notice is delayed. The act also increased the government's ability to share information between different agencies during investigations.	The USA Patriot Act significantly made digital investigations easier and more efficient for law enforcement and intelligence agencies. It effectively removed many of the data-sharing and interception restrictions that were previously set out in the 1974 Privacy Act. By lowering the legal threshold for surveillance, it allowed investigators to share information more freely between different federal departments. This shift prioritized the speed of information gathering and inter-agency cooperation over the individual privacy protections that had slowed down digital investigations in the past.

Law	Briefly describe the law (3–4 sentences)	Describe the law’s effect on digital investigations (3–4 sentences)
Regulation (EU, Euratom) No 883/2013 of the European Parliament	This regulation establishes the mandate and powers of the European Anti-Fraud Office (OLAF) to investigate fraud, corruption, and other illegal activities affecting EU financial interests. It outlines the procedural guarantees for persons under investigation and defines how OLAF cooperates with member states. The law ensures that investigations are conducted independently while protecting the fundamental rights of the individuals involved.	This regulation dictates the specific digital forensics procedures OLAF must follow when investigating fraud to ensure that data is collected without violating fundamental rights. It enables investigators to access databases and, in some cases, privately owned devices used for work purposes when there is reasonable suspicion of illegal activity. Because OLAF remains an administrative body, investigators must often rely on national law for the enforcement of digital evidence collection and on-the-spot checks. This creates a procedural requirement for digital forensics teams to maintain high documentation standards so their findings can be used as evidence in subsequent judicial proceedings.

Part II: Case Study - United States Vs Simons

Explain which laws apply to the case study.	The Fourth Amendment is the primary law at issue because it determines whether Simons had a reasonable expectation of privacy in his government office and computer. The Electronic Communications Privacy Act (ECPA) also applies, as it provides the statutory framework for how government agents can legally monitor and access the electronic data and file transfers Simons made while at work. Additionally, since Simons was an employee of a federal agency, the Privacy Act of 1974 applies to how the government maintains and shares the records collected during the criminal investigation. These laws collectively dictate the boundaries of the investigation, from the initial remote monitoring to the eventual physical seizure of the hard drive.
How does knowledge of these laws affect your understanding of organizational policy creation when it comes to policies such as acceptable use, email, data storage, backup, data retention, or bring-your-own-device (BYOD)?	Knowing that private organizations can establish their own rules means that explicit notice of policy and acknowledgement of receipt are vital for digital investigations. Most of these laws primarily restrict government actions rather than the private sector, but clear internal policies bridge the gap by establishing a lack of privacy expectations for employees. Because private organizations are not generally bound by the Fourth Amendment, their specific policies on acceptable use and BYOD determine the legal limits of internal data monitoring. Consequently, an organization’s policies must be transparent and strictly followed to ensure that gathered data can be turned over to law enforcement without violating statutory protections like the ECPA.